

25SMCV04720 25SMCV04720

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV04720 Hearing Date: June 26, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

CLEAN ENERGYZ, LLC, a California limited liability company,

Plaintiff,

v.

KAVA HOLDINGS, LLC, doing business as HOTEL BEL AIR, a
Delaware limited liability company; and DOES 1 through 100, inclusive,

Defendants.

Case No.: 25SMCV04720

Hearing Date: 06/26/2026

[TENTATIVE] RULING RE:

PEDRAM MINOOFAR'S MOTION TO BE RELIEVED AS COUNSEL

BACKGROUND

On September

11, 2025, Plaintiff Clean Energyz, LLC (Plaintiff) filed its complaint against Defendant Kava Holdings, LLC, dba Hotel Bel Air (Defendant) and DOEs 1 through 100. The complaint demands arbitration and asserts five causes of action for (1) breach of contract, (2) open book account, (3) account stated, (4) reasonable value of labor and materials furnished, and (5) foreclosure of mechanic's lien.

Specifically, Plaintiff alleges that

it entered into a design-build contract with Defendant on October 18, 2022, wherein Plaintiff agreed to provide all labor, materials, services, and equipment necessary to design and construct solar system and energy storage equipment on Defendant's property. (Compl., ¶ 8.) Defendant allegedly caused changes to the scope of the work which increased the cost of Plaintiff's performance and forced Plaintiff to incur additional costs, raising the contract price.

(Compl., ¶¶ 10-11.) Plaintiff gave notice to Defendant of its claims for additional compensation and time for performance, but Defendant unlawfully terminated the contract, forced the removal of Plaintiff from the project, continued utilizing Plaintiff's designs and work product, and failed to pay Plaintiff any amount above the initial contract price. (Compl., ¶¶ 12, 14.)

On November

6, 2025, Plaintiff and Defendant entered into a joint stipulation to submit Plaintiff's claims to arbitration and the Court ordered the case stayed pending binding arbitration as to the entire action. (Minute Order dated November 6, 2025.)

On May 18,

2026, the Court granted Plaintiff and Defendant's joint stipulation to lift the stay on proceedings solely to allow Plaintiff's counsel to withdraw from the present action.

On May 20,

2026, Plaintiff's counsel Pedram Minoofar (Minoofar) of Yadegar, Minoofar, & Soleymani LLP moved to be relieved as counsel.

LEGAL

STANDARD

The Court has

discretion to permit an attorney to withdraw from representation, and such a

motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule

3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362 (a) – (e).)

"If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Id. at 3.1362, (d).)

"Current" means that "the address was confirmed within 30 days before the filing of the motion to be relieved." (Id.) "Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (Id.)

DISCUSSION

Here,

Minoofar has not satisfied the requirements of rule 3.1362. The MC-051 form is directed to Plaintiff and is accompanied by Minoofar's declaration on the MC-052 form stating the reasons for withdrawal. Minoofar also filed an MC-053 proposed order with the Court, and all forms were purportedly served on

Plaintiff through electronic service. However, neither Minoofar's MC-052 declaration nor his MC-053 proposed order specifies the hearing dates scheduled in the action or proceeding as required. Minoofar also has not provided the last known address and telephone number for Plaintiff on the MC-053 proposed order, and has not provided sufficient information to demonstrate that Plaintiff's electronic service address is current.

Minoofar

states in his declaration that Plaintiff is in breach of its obligations under its retainer agreement with Yadegar, Minoofar & Soleymani LLP, and communication between Minoofar and Plaintiff has broken down such that continued representation is impossible. The proffered reasons constitute good cause to grant Minoofar's motion. Additionally, the only hearing on calendar is a post-arbitration status conference on November 9, 2026.

However,

neither the moving papers nor the joint stipulation provide information regarding the status of the binding arbitration proceedings to allow the Court to affirmatively grant this motion in light of the potential prejudice to Plaintiff and delay in proceedings which may result if arbitration is ongoing. Plaintiff is a limited liability company and it is well established law in California that a company may not represent itself in legal proceedings and must be represented by counsel. (*Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724.) The Court is not estopped from granting counsel's motion for relief solely because it will leave Plaintiff without representation. (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284 fn. 5 [the ban on corporate self-representation does not prevent a court from granting a motion to withdraw as attorney of record, even if it leaves the corporation without representation].) However, the Court must consider prejudice to Plaintiff, which may be present if arbitration is active and Plaintiff will be precluded from participation, resulting in delay while Plaintiff engages outside counsel.

CONCLUSION

Accordingly,

the hearing on Plaintiff's counsel's motion to be relieved is DENIED without prejudice. Counsel for Plaintiff should remedy the procedural defects in the moving papers and accompany a renewed motion with a declaration regarding the status of the arbitration.

Dated: June 26, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court